

PROJECT NAME: CONSTRUCTION MANAGER AT RISK CHEYENNE PUBLIC SAFETY CENTER

DDO NOT MODIFY PROPOSAL FORM - Any modification or alteration to this form from its original format will result in rejection of the proposal. Proposal form to be completed in its entirety, include firm name on each page where indicated, and signed in ink. Submit proposal form in its entirety.

**“Exhibit A”
CMAR FEE PROPOSAL FORM**

PROPOSAL FOR: Cheyenne Public Safety Center

PROPOSAL DUE: 2:00 p.m., October 23, 2013

TO: (Owner) **City of Cheyenne
Purchasing Office
2101 O’Neil Avenue, Room 104, Cheyenne, Wyoming 82001**

PROPOSER:

FCI Constructors of Wyoming LLC

Legal Name of Firm

Becket Hinson, Vice President

By

1023 E Lincolnway, Cheyenne, WY 82003

City

State

Zip Code

307-778-3085

Telephone Number

307-778-3659

Fax Number

October 29, 2013

Proposal Dated

CT-14-16385

City of Cheyenne Contractor's License No.

01-20-2014

Expiration Date

General Contractor, Class A

License Classification

PROPOSER’S WYOMING RESIDENCY INFORMATION:

Wyoming Resident

Wyoming Resident or Out-of-State Contractor

1019

Wyoming Residency Certificate Number

10-06-2014

Expiration Date

(Certificate of Residency must be current and on file with the State of Wyoming Department of Employment, Labor Standards Division (307)777-7261.)

The undersigned, pursuant to the Request for Proposal, and all other proposal requirements, being familiar with existing conditions, the site and other local conditions affecting the cost and performance of the work, hereby proposes and agrees to perform all work including labor, materials, services, etc. in strict accordance with the Request for Proposals and all Appendices.

PROPOSER'S FIRM NAME: FCI Constructors of Wyoming LLC

PERFORMANCE BOND AND PAYMENT BOND

Note: A Performance and Payment Bond is not required to be submitted with the Preconstruction portion of this proposal. However a Performance and Payment Bond is required once a Guaranteed Maximum Price has been agreed upon between the CMAR and the Owner.

CONTRACT COMPLETION TIME:

It is agreed by the undersigned, if awarded the contract to **SUBSTANTIALLY COMPLETE THE WORK IN ACCORDANCE WITH THE DATES SET IN THE REQUEST FOR QUALIFICATIONS AND REQUEST FOR PROPOSAL.**

The undersigned further agrees that in the event of failure to achieve substantial completion within the above stated time period, the contractor and the contractor's surety shall be liable for and shall pay the owner the sums hereinafter stipulated as **LIQUIDATED DAMAGES** (Not a Penalty) for each calendar day of delay until the work is substantially complete.

One Thousand Seven Hundred Fifty and NO/100 Dollars (\$1,750.00)

Note: The above stated Liquidated Damages will be included in the CMAR Contract.

The undersigned also agrees that he will not withdraw his proposal for a period of forty-five (45) days from the date of proposal opening.

In submitting this proposal, be it understood, the owner reserves the right to waive irregularities and informalities, to reject any or all proposals without further obligation, and to accept any proposal deemed desirable. It is also understood that the owner will use the proposal as a part of the evaluation criteria for selection of the project CMAR and this proposal is not a competitive bid.

If awarded the project the undersigned also agrees to furnish the following post-bid submittals to the owner within ten (10) calendar days of the Notice of Intent to Award Contract.

- a. Performance Bond
- b. Labor and Material Payment Bond
- c. Certificate of Insurance

The undersigned agrees to maintain Wyoming Workman's Compensation and Wyoming Unemployment Insurance in good standing throughout the duration of the project until final payment by the owner. The contractor shall submit copies of the certificates within ten days upon the owner's request.

By submission of this proposal the responder certifies:

A. NON-COLLUSION AFFIDAVIT OF PRIME RESPONDERS

1. He is the responder that has submitted this proposal, and that he has the authority to sign on its behalf.
2. He is fully informed respecting the preparation and contents of the attached proposal of all pertinent circumstances respecting such proposal.
3. Such proposal is genuine and is not a collusive or sham proposal.

PROPOSER'S FIRM NAME: FCI Constructors of Wyoming LLC

4. Neither the said responder nor any of its officers, partners, owners, agents, representatives, employees or parties in interest, including this affiant, has in any way colluded, conspired, connived or agreed, directly or indirectly with any other responder, firm or person to submit a collusive or sham proposal in connection with the contract of which the attached proposal has been submitted or to refrain from proposing in connection with such contract, or has in any manner, directly or indirectly, sought by agreement, collusion, communication or conference with any other responder, firm or person to fix the price or prices in the attach proposal or of any other proposal; to fix any overhead, profit, or cost element of the proposal price or the proposal price of any other responder; or to secure through any collusion, conspiracy, connivance or unlawful agreement any advantage against the owner or any person interested in the proposed contract.

B. CERTIFICATE OF NON-DISCRIMINATION

The responder hereby certifies that all persons employed by their firm, their affiliates, subsidiaries, or holding companies are treated equally by their firm without regard to or because of race, religion, ancestry, national origin or sex as required by federal and state anti-discrimination laws. The responder further certifies and agrees that it will deal with subcontractors, responders or vendors without regard to or because of race, religion, ancestry, national origin or sex. Violation of this certification may constitute a material breach of contract upon which the owner may determine to cancel, terminate, or suspend the contract.

PROPOSER'S FIRM NAME: FCI Constructors of Wyoming LLC**PROPOSAL SUMMARY**

DESCRIPTION	PROPOSAL
1) Preconstruction Services Fixed Fee Proposals shall provide a pre-construction services fixed fee, which shall not be included in the construction services fixed fee. (Refer to RFP-9-14, D.2.)	\$ 44,280
2) Construction Services Fixed Fee (Refer to RFP-9-14, D.3.)	\$ 1,320,921
3) TOTAL - CMAR FIXED FEE (1 + 2)	\$ 1,365,201
4) Construction Change Order Mark-Up For Changes Not Involving Completion Time (Refer to RFP-9-14, D.5.)	3.50 %
5) Construction Change Order Mark-Up For Changes That Extend Completion Time (Refer to RFP-9-14, D.5.)	7.50 %
6) Change Order Mark-Up "Free Zone" (Refer to RFP-9-14, D.5.)	\$ 100,000
7) CMAR's Contingency Rate (Refer to RFP-9-14, D.7.)	3.00 %
8) Umbrella & General Liability Insurance Rate (Refer to RFP-9-14, D.8.b.)	0.40 %
9) Builder's Risk Insurance Rate (Refer to RFP-9-14, D.8.c.)	0.11 %
10) Performance & Payment Bond Rate (Refer to RFP-9-14, D.8.d.)	0.65 %

SIGNATURE

Signature of Responder

Becket Hinson

Title: Vice PresidentName of Company FCI Constructors of Wyoming LLCCompany Organization: Limited Liability Corporation

(Individual, Partnership, Corporation)

Incorporated in the State of WyomingNames of other partners or officers: Ed Forsman, Pres.; Clay Marshall, Sec/Treas.; Ross Choate, ManagerCompany Address 1023 E Lincolnway, Cheyenne WY 82001 (Mailing: PO Box 12569, ZIP 82003)Company Phone No.: (307) 778-3085Company Fax No.: (307) 778-3659